

		A defect in the title of real property belonging to a trust does not mean that the property is not a trust asset. A declaration of trust is sufficient to create a trust interest in real property; a grant deed transferring title of the real property to the trustee is not necessary. (Prob. Code § 15200(a); <i>Estate of Heggstad</i> (1993) 16 Cal.App.4th 943, 949-950.) Furthermore, there is no question that the court had fundamental jurisdiction, that is, subject matter jurisdiction and personal jurisdiction. Thus, even if the court acted in excess of its jurisdiction when it made orders concerning the Oregon Property, the judgment pertaining to the Oregon Property would be voidable, not void. (<i>Pacific Mut. Life Ins. Co. of Calif. v. McConnell</i> (1955) 44 Cal.2d 715, 726; <i>Conservatorship of O'Connor</i> (1996) 48 Cal.App.4th 1076, 1088.) “Acts in excess of jurisdiction are subject to harmless error analysis, that is, they support a reversal of the judgment only upon a showing of prejudice. (See <i>People v. Williams</i> (2006) 40 Cal.4th 287, 301.) Furthermore, challenges to a judgment based on the defect may be barred under principles of estoppel, forfeiture, and waiver.” (<i>LAOSD Asbestos Cases</i> (2018) 28 Cal.App.5th 862, 870–71, citing <i>In re Griffin</i> (1967) 67 Cal.2d 343, 347; <i>People v. Mower</i> (2002) 28 Cal.4th 457, 474, fn. 6.) Ms. Dengler has not made a showing of prejudice resulting to her from the court’s alleged lack of jurisdiction over the Oregon Property. Indeed, the Oregon Property has since been distributed as agreed to by Ms. Dengler in the January Partial Distribution Agreement. Further, the Quitclaim Deed transferring the Oregon Property to the Trust, which Mr. Gardener’s Oregon attorney sought to correct (and has since corrected), was a trial exhibit, and Ms. Dengler made no objection to it. On the record presented, the court finds no grounds to set aside the 6/27/24 Judgment. The motion to set aside by Linda Dengler is denied. Counsel for Gregory Gardner is directed to give notice.
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4	Goodwin – Trust (2021-01221814)	MOTION FOR ATTORNEY FEES The motion by Conservator Cheryl Perkins for an order requiring Objector Sharon Lee Page and/or David Geare, Trustee, to pay attorney fees is DENIED.

Evidentiary Matters

Ms. Perkins's objections to Ms. Page's request for judicial notice (ROA 939) are SUSTAINED as to exhibits 1-6. None of the material of which Ms. Page requests judicial notice is relevant to the court's decision.

Ms. Perkins's objections to the Declaration of Ms. Page (ROA 940) are SUSTAINED as to objections 1, 2, 3, 4, 5, and 6 and OVERRULED as to objections 7, 8, 9, 10, 11, and 12.

Ms. Perkins's objections to the Declaration of Fred G. Muscarella are OVERRULED as to objections 1-6.

Motion for Fees

Attorney fees incurred in litigation are not recoverable unless authorized by statute or contract. This is known as the American Rule, and it is codified in California Code of Civil Procedure section 1021, as follows: "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided."

Contrary to arguments made by Ms. Perkins, the case of *Hollaway v. Edwards* ("Hollaway") (1998) 68 Cal.App.4th 94 does not provide an exception to the American Rule in probate cases. In *Hollaway*, one trustee successfully defended against a removal petition filed by her co-trustee. (*Id.* at p. 96.) The prevailing trustee filed a petition for attorney fees under Probate Code sections 15684 and 17200(b)(9), which petition was granted. (*Id.*) The losing co-trustee appealed. She argued that the lower court wrongfully permitted the petition to be filed after the 60-day time limit set forth in California Rules of Court, Rule 870.2 (which is now Rule 3.1702). (*Id.*) The appellate court agreed with the lower court that Rule 870.2 did not apply to probate petitions. It reasoned that, since Rule 870.2 provides for fees "up to and including the rendition of judgment," it presumably applies only to civil litigation because many probate petitions do not end in a judgment. (*Id.* at pp.98.)

The unsuccessful co-trustee in *Hollaway* further argued that attorney fees were not recoverable because they only benefited the successful trustee, not the trust. (*Id.* at p. 99.) The appellate court disagreed, holding that the attorney fees also benefited the trust: "While defense against those allegations may have benefited [the successful trustee] personally by eliminating the possibility of individual

liability, they also benefited the trust by eliminating charges raising serious questions about whether she had and could continue to administer the trust properly. [Citation.]” (*Id.* at pp. 99–100.)

In short, *Holloway* involved an order for attorney fees based on statute, specifically Probate Code sections 15684 and 17200(b)(9). In fact, the court in *Holloway* specifically declined to adopt the successful trustee’s assertion that the fees she was seeking were not statutory. (*Id.* at p. 98.)

Ms. Perkins points to language in *Holloway* in which the court distinguishes Code of Civil Procedure section 1032 from Probate Code section 1002 as follows:

For example, although Code of Civil Procedure section 1032, subdivision (b) entitles a prevailing party in ordinary civil litigation to costs as a matter of right, the probate court retains discretion to decide not only whether costs should be paid, but also, if they are awarded, who will pay and who recover them. (Prob. Code, § 1002.) We are loath to circumscribe the probate court's discretion by importing California Rules of Court, rule 870.2's strict time limits.

Such language does not provide that Probate Code section 1002 gives the probate court discretion to award attorney fees to a prevailing party in a probate action. In fact, it does not address the issue of attorney fees at all. Instead, it simply notes that under the Code of Civil Procedure, costs must be awarded to a prevailing party, but under the Probate Code, the court has discretion whether and how to award costs based on its “broad equitable powers over trusts.” (*Id.* at p. 99, emphasis added.)

This instant case involves a conservatorship action. Mr. Leight represented the proposed conservator whose petition was granted. While the Probate Code does provide a basis for attorney’s fees to be paid to the attorney of a conservator in certain circumstances, said circumstances are not present here.

Probate Code sections 1470-1472 permit an order that the conservatee’s estate pay attorney fees for the court-appointed attorney for the conservatee. Mr. Leight is not a court-appointed attorney, and he is not requesting payment from the conservatee’s estate.

		Probate Code section 2640 permits a conservator to petition for the payment of attorney fees, after an Inventory and Appraisal has been filed and after Letters have issued. In this case, an Inventory and Appraisal has not been filed and Letters have not issued. Moreover, the court’s Final Statement of Decision (ROA 841) does not state or imply that Ms. Perkins is entitled to prevailing party fees. Rather, the Statement of Decision states that the court will rule on “future fee <i>petitions</i> for costs and attorney fees” (emphasis added) consistent with the authorities cited by the court. Indeed, such petitions have since been filed by the guardian <i>ad litem</i> and the proposed conservatee. (ROAs 877 and 914.) The court finds that there is no provision in the Probate Code that permits the prevailing party in a conservatorship action to be awarded fees payable by the opposing parties. Thus, Ms. Perkins’s motion for attorney fees is denied. <u>Motion for Orders Against Mr. Geare as Trustee</u> Ms. Perkins is requesting that fees be awarded against Mr. Geare in his capacity as trustee of the Donald and Helen Goodwin Trust. Mr. Geare was a party to the instant action, but not in his capacity as trustee because the underlying trial was not a trust litigation. Thus, even assuming <i>arguendo</i> that there exists a basis for awarding attorney fees to Ms. Perkins as prevailing party, such fees could not be awarded against Mr. Geare as trustee. Ms. Perkins seeks other orders against Mr. Geare as trustee. Specifically, she seeks an order for Mr. Geare to account for all trust funds used to pay the attorney fees incurred in the instant litigation, as well as an order for all such funds to be reimbursed to the trust. Such requests must be made via a trust petition in the court of proper jurisdiction over the trust. Thus, Ms. Perkins’s motion for orders pertaining to the trustee is denied. Counsel for Ms. Page is ordered to give notice of this ruling.
5	Harris – Trust (2023-01343455)	MOTION TO SUSPEND TRUSTEE AND ORDER HER TO OBTAIN SEPARATE COUNSEL Timothy F. Jones (“Timothy”) moves this court for an order suspending Kathie M. Jones (“Kathie”) as Trustee and appointing Timothy as interim Trustee. Members of the Jones family are